

general intent becomes very apparent; *it is a general provision against arbitrary and tyrannical legislation over existing rights, whether of person or property.*" (Emphasis supplied.)

More than 100 years ago this Court struck down statutes which had the effect of preventing defined categories of persons from practicing their professions. *Cummings v. Missouri*, 4 Wall. 277 (1867) (a priest); *Ex parte Garland*, 4 Wall. 333 (1867) (a lawyer). Those two cases established more broadly that "punishment" for purposes of bills of attainder is not limited to criminal sanctions; rather, "[t]he deprivation of *any rights, civil or political, previously enjoyed*, may be punishment . . ." *Cummings, supra*, at 320.

Mr. Chief Justice Warren pointed out that the Constitution, in prohibiting bills of attainder, did not envision "a narrow, technical (and therefore soon to be outmoded) prohibition . . ." *United States v. Brown*, 381 U. S. 437, 442 (1965). To the contrary, the evil was a *legislatively imposed* deprivation of existing rights, including property rights, directed at named individuals. Mr. Justice Black, in *United States v. Lovett*, 328 U. S. 303, 315-316 (1946), stated:

"[The cases] stand for the proposition that legislative acts, *no matter what their form*, that apply either to named individuals or to easily ascertainable members of a group in such a way as to inflict punishment on them without a judicial trial are bills of attainder prohibited by the Constitution." (Emphasis supplied.)

The only "punishment" in *Lovett*, in fact, was the deprivation of Lovett's salary as a Government employee—an indirect punishment for his "bad" associations.

Under our cases, therefore, bills of attainder require two elements: first, a specific designation of persons or groups as subjects of the legislation, and, second, a *Garland-Cummings-Lovett-Brown*-type arbitrary deprivation, including depriva-